

## TENTATIVE RULING

**Case:** Meritage Homes of CA Inc. v. HBT of Winters Highlands, LLC  
**Case No. CV-2023-1612**  
**Hearing Date:** January 30, 2026 **Department Fourteen** **9:00 a.m.**

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Defendant HBT of Winters Highlands, LLC's request for judicial notice is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.)

Defendant's request to strike plaintiff Meritage Homes of California, Inc.'s combined opposition is **DENIED**. (Reply to Opp., p. 5 [filed 10/16/25].) On October 23, 2025, the Court provided defendant with the opportunity to file an amended reply to plaintiff's combined opposition (filed October 10, 2025) based on the notice of errata (filed October 16, 2025.) (Minute Order [adopting tentative ruling, dated 10/23/25].) Defendant filed a response to sur-reply on December 5, 2025. Given the Court's October 23, 2025, ruling and defendant's December 5, 2025, filing, the Court denies defendant's request to strike plaintiff's combined opposition.

Plaintiff's objection to defendant's reply to its combined opposition is **SUSTAINED IN PART**. (Objection to Reply, p. 2 [filed 10/21/25].) The Court does not consider the new arguments raised by defendant in its reply brief. New arguments may not be raised for the first time in a reply brief. (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 770 [an issue not adequately raised in moving papers is forfeited]; *High Sierra Rural Alliance v. County of Plumas* (2018) 29 Cal.App.5th 102, 112 fn. 2.) Otherwise, the Court considers the reply.

The Court declines to rule on plaintiff's objection to the declaration of Daniel A. King in reply to opposition, as the Court did not consider the challenged declaration or exhibits when ruling on these motions.

Plaintiffs' request for leave of court to file a sur-reply or supplemental briefing is **DENIED**. (Code Civ. Proc., § 1005, subd. (b) [only referring to moving papers, opposing papers, and reply papers]; Cal. Rules of Court, rule 3.1113(d) [same].) As the Court declines to consider new arguments raised by defendant in its reply brief, no further briefing from plaintiff is necessary.

The Court declines to consider the supplemental declaration of Daniel A. King filed on December 11, 2025, as it was filed after the reply deadline. (Code Civ. Proc., § 1005, subd. (b); Cal. Rules of Court, rule 3.1113(d).)

### **Defendant's motion to strike plaintiff's notice of errata**

Defendant's motion to strike plaintiff's notice of errata filed and served on October 23, 2025, is **DENIED**. (Code Civ. Proc., § 436; Motion to Strike, pp. 2-3 [filed 12/5/25].) The Court finds that defendant fails to provide sufficient legal authority in support of its motion to strike. Code of Civil Procedure section 436 governs motions to strike for pleadings. Plaintiff's notice of errata is not a pleading. (Code Civ. Proc. § 422.10 ["[t]he pleadings allowed in civil actions are complaints, demurrers, answers, and cross-complaints"]; see also Code Civ. Proc., § 420 ["[t]he pleadings are the formal allegations by the parties of their respective claims and defenses, for the judgment of the Court."].)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

### **Defendant's amended motion for attorneys' fees and costs**

Defendant's amended motion for attorneys' fees and costs is **GRANTED IN PART**. (Code Civ. Proc., § 425.16, subd. (c)(1).) On October 4, 2023, this Court granted in part defendant's special motion to strike. (Code Civ. Proc., § 425.16.) This Court finds that defendant is the prevailing party regarding its special motion to strike. (Code Civ. Proc., § 425.16, subd. (c)(1); *Mann v. Quality Old Time Service, Inc.* (2006) 139 Cal.App.4th 328, 338–340 [“a party need not succeed in striking every challenged claim to be considered a prevailing party within the meaning of section 425.16”]; see also *Lin v. City of Pleasanton* (2009) 175 Cal.App.4th 1143, 1158 [“[t]he term “prevailing party” must be ‘interpreted broadly to favor an award of attorney fees to a partially successful defendant’”]; *Williams v. Doctors Medical Center of Modesto, Inc.* (2024) 100 Cal.App.5th 1117, 1142–1143; King Decl. in Response to Sur-Reply, ¶ 3–4 [filed 12/5/25]; Response to Sur-Reply, p. 3 [filed 12/5/25] .)

This Court further finds that the proffered hourly rates claimed by Pioneer Law Group are reasonable. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095; see also *Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1004 [“[t]he reasonable hourly rate is that prevailing in the community for similar work”]; King Decl. ISO Motion for Attorneys' Fees dated November 9, 2023, ¶¶ 3–13, Exh. A.) Additionally, defendant has established that the hours expended by Pioneer Law Group in connection with the special motion to strike and the motion for attorneys' fees and costs are reasonable. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1133 [“an award of fees may include not only the fees incurred with respect to the underlying claim, but also the fees incurred in enforcing the right to mandatory fees under Code of Civil Procedure section 425.16”]; King Decl. ISO Motion for Attorneys' Fees dated November 9, 2023, ¶¶ 3–13, Exh. A; defendant's Motion to Strike, or in the Alternative, Response, Table 1, [filed 12/5/25]; see also King Decl. in Response to Sur-Reply, ¶¶ 6–9; *Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488 [“it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence”].) However, given that defendant's special motion to strike was not granted in full, this Court reduces defendant's requested attorneys' fees by **\$1,485**. (*Mann, supra*, 139 Cal.App.4th at pp. 343–345 [when a defendant is only partially successful in challenging portions of a complaint, the court should determine the lodestar amount expended on the successful claims and reduce the amount if appropriate]; King Decl. ISO Motion for Attorneys' Fees dated November 9, 2023 at ¶ 7 [“I reasonably estimate that I spent approximately three hours doing research and drafting related to the two numbered claims that HBT moved against and the Court declined to strike”].) Furthermore, the Court declines to award attorneys' fees for time and costs not yet incurred.

Additionally, the Court finds that plaintiff has failed to show that a multiplier, increasing the amount of attorneys' fees, is warranted in this case. (*Thayer v. Wells Fargo Bank* (2001) 92 Cal.App.4th 819, 835; Amended Memo. Pts. & Auths., p. 4.)

Therefore, the Court awards defendant **\$22,572** in attorneys' fees and **\$227.89** in costs for a total award of **\$22,799.89**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

### **Defendant's motion for appellate attorneys' fees and costs**

Defendant's motion for appellate attorneys' fees and costs is **GRANTED IN PART**. (Code Civ. Proc., § 425.16, subd. (c)(1).) On October 4, 2023, this Court granted in part defendant's special motion to strike. (Code Civ. Proc., § 425.16.) On November 17, 2023, defendant appealed this Court's order challenging the partial denial of its special motion to strike. On April 14, 2025, the Third District Court of Appeal affirmed in part and reversed in part this Court's order in an unpublished opinion. The appellate court affirmed this Court's order granting in part defendant's special motion to strike and further ordered this Court to strike an additional claim from plaintiff's complaint. On July 24, 2025, this Court received the remittitur from the Third District Court of Appeal.

This Court finds that defendant is the prevailing party on appeal. (Code Civ. Proc., § 425.16, subd. (c)(1); *Evans v. Unkow* (1995) 38 Cal.App.4th 1490, 1499-1500 [appellate attorneys' fees and costs are recoverable by a defendant who prevails on its appeal of a special motion to strike]; *Liu v. Moore* (1999) 69 Cal.App.4th 745, 754.) This Court further finds that the proffered hourly rates claimed by Pioneer Law Group are reasonable. (*PLCM Group, Inc.*, *supra*, 22 Cal.4th at p. 1095; see also *Heritage Pacific Financial, LLC*, *supra*, 215 Cal.App.4th at p. 1004; King Decl. ISO Motion for Appellate Fees, ¶¶ 3-13, Exh 1.) Additionally, the Court finds that the hours expended by Pioneer Law Group in connection with its work on the appeal are not ambiguous, vague, duplicative, and/or excessive, and that defendant has established that the hours expended in connection with Pioneer Law Group's work on the appeal and the motion for attorneys' fees and costs are reasonable. (*Ketchum*, *supra*, 24 Cal.4th, at p. 1141; *Lunada Biomedical*, *supra*, 230 Cal.App.4th, at p. 488; King Decl. ISO Motion for Appellate Fees, ¶¶ 3-13, Exh 1; defendant's Motion to Strike, or in the Alternative, Response, Table 2 [filed 12/5/25]; King Decl., in Response to Sur-Reply, ¶ 6-13 [filed 12/5/25].) However, the Court declines to award attorneys' fees for time and costs not yet incurred.

Additionally, the Court finds that plaintiff has failed to show that a multiplier, increasing the amount of attorneys' fees, is warranted in this case. (*Thayer*, *supra*, 92 Cal.App.4th at p. 835; Memo. Pts. & Auths., p. 4.)

Therefore, the Court awards defendant a total of **\$77,622** in appellate attorneys' fees.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

### **Defendant's request for additional fees for work on sur-reply**

In defendant's response to plaintiff's sur-reply, defendant requests this Court to add an additional \$6,594.50 in attorneys' fees for time spent researching and preparing the sur-reply with accompanying papers, plus an additional \$1,635 in attorneys' fees for anticipated time to prepare for and attend oral argument on both motions. (Response to Sur-Reply, p. 10 [filed 12/5/25]; King Decl. in Response to Sur-Reply, ¶ 5 [filed 12/5/25].) The Court agrees with defendant and awards defendant an additional **\$6,594.50** in attorneys' fees. (*Ketchum, supra*, 24 Cal.4th, at p. 1141; King Decl. in Response to Sur-Reply, ¶ 5 [filed 12/5/25].) However, the Court declines to award attorneys' fees for time not yet incurred.

### **Review of remittitur on appeal**

Parties are **DIRECTED TO APPEAR**.

**TENTATIVE RULING**

**Case:**                      **Zhou v. Hotel Winters, LLC**  
                                 **Case No. CV-2022-1963**

**Hearing Date:**        **January 30, 2026**                      **Department Six**                      **9:00 a.m.**

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On the Court’s own motion, defendant Michael Olivas’ (“Olivas”) demurrer to third amended complaint, Olivas’ motion to strike plaintiff’s third amended complaint, defendant David Fishbach’s demurrer to third amended complaint, defendant Ashok Patel’s (“Patel”) demurrer to third, fourth, seventh, ninth and tenth causes of action of plaintiff’s third amended complaint, and Patel’s motion to strike portions of plaintiff’s third amended complaint are **CONTINUED** to **March 13, 2026**, at 9:00 a.m. in Department Eight.